

25STCV32692 25STCV32692

County: los-angeles

Division: Civil Law and Motion

Department: 507

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Case Number: 25STCV32692 Hearing Date: August 5, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 5, 2026 TRIAL DATE: November 16, 2027

CASE: Karen Reyes, et al. v. Raiser LLC, dba

Uber, et al.

CASE NO.: 25STCV32692

MOTIONS

TO COMPEL RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND
REQUEST FOR PRODUCTION OF DOCUMENTS

MOVING PARTIES: Defendant James Choi

RESPONDING PARTY: None

CASE HISTORY:

11/07/25: Complaint filed.

TENTATIVE RULING:

The

Court GRANTS Defendant's motions to compel responses.

Plaintiffs are ordered to provide
verified responses to the discovery at issue within 20 days of this order.

Defendant's request for sanctions is granted in a
reduced amount.

Plaintiffs Hailey Reyes and Jamie Mascarro are each
ordered to pay Defendant sanctions in the amount of \$1,500, within 30 days of
this order.

Plaintiff Karen Reyes is ordered to pay Defendant
sanctions in the amount of \$500, within 30 days of this order.

Moving Parties to
give notice.

BACKGROUND

This is an action for personal injury.

Defendant Choi moves compel Plaintiffs'
Karen Reyes, Jamie Mascarro, and Hailey Reyes' responses to discovery and seeks
sanctions.

DISCUSSION:

Legal Standard

Compelling Responses to Interrogatories

If a party to whom interrogatories are directed fails to
serve a timely response, the propounding party may move for an order compelling
responses and for a monetary sanction. (Code Civ. Proc section 2030.290, subd.
(b).) The statute contains no time limit for a motion to compel where no
responses have been served. All that needs be shown in the moving papers is
that a set of interrogatories was properly served on the opposing party, that
the time to respond has expired, and that no response of any kind has been
served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.)

Compelling Responses to Demand for Production of Documents

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Where there has been no timely response to a demand for the production of documents, the demanding party may seek an order compelling a response. (Code Civ. Proc., section 2031.300, subd. (b).) Failure to timely respond waives all objections, including privilege and work product. (Code Civ. Proc., section 2031.300, subd. (a).) Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion.

Sanctions

Sanctions may be imposed for misuse of discovery process. (Code Civ. Proc., section 2023.030, subd. (a).) Failing to respond or to submit to an authorized method of discovery constitutes a misuse of the discovery process. (Code Civ. Proc., section 2023.010, subd. (d).)

Sanctions are mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., sections 2030.290(c), and 2031.300(c).)

Motion to Compel and for Sanctions

On March 3, 2026, Defendant Choi served Form Interrogatories, Special Interrogatories, and Request for Production of Documents on Plaintiffs Hailey Reyes, and Jamie Mascorro. (Martinez Decl., ¶ 2; Exhs. 1.) On March 3, 2026, Defendant also served Request for Production of Documents on Plaintiff Karen Reyes. (Id.) As of the filing of the motion, Defendant has not received any responses from Plaintiffs or any request for an extension to serve responses. (Id., ¶ 4.)

As Defendant served Plaintiffs with discovery requests and Plaintiffs failed to provide responses, the Court finds Defendant is entitled to an hour compelling the discovery at issue. Thus, the Court grants Defendant's motions.

Sanctions

Defendant requests \$1,125 in sanctions against Plaintiffs for each motion. As the motions are granted, the Court grants the request for sanctions, as no justification has been provided for the failure to provide responses, constituting a misuse of the discovery process. However, the amount of sanctions awarded will be reduced due to the simplicity of the motions, the nature of the concurrent facts, and because there were no oppositions to review.

The Court orders Plaintiff Karen Reyes to pay Defendant sanctions in the amount of \$500, within 30 days of this order.

The Court orders Plaintiffs Hailey Reyes and Jamie Mascarro to each pay Defendant sanctions in the amount of \$1,500, within 30 days of this order.

CONCLUSION:

Accordingly, the Court
GRANTS Defendant's motions to compel responses.

Plaintiffs are ordered to provide
verified responses to the discovery at issue within 20 days of this order.

Defendants' request for sanctions is granted in a reduced amount. Plaintiffs Hailey Reyes and Jamie Mascarro are each ordered to pay Defendant sanctions in the amount of \$1,500, within 30 days of this order.

Plaintiff Karen Reyes is ordered to pay Defendant sanctions in the amount of \$500, within 30 days of this order.

Moving

Parties to give notice.

IT IS SO ORDERED.

Dated: August 5, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.